

Court No. - 3

Case :- WRIT - C No. - 13177 of 2022

Petitioner :- M/S Shah Battery

Respondent :- State Of U P And 5 Others

Counsel for Petitioner :- Bidhan Chandra Rai, Ishir Sripat

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Ashutosh Srivastava, J.

Heard Sri Bidhan Chandra, learned counsel for the petitioner, learned Standing Counsel for the State respondents and Sri Chetan Chatterjee, learned counsel for the Respondents No.4, 5, & 6.

Sri Bidhan Chandra, learned counsel for the petitioner submits that the electricity connection of the petitioner was temporarily disconnected on 23.01.2017 and, therefore, after expiry of six months, in terms of Para 4.37 of the U.P. Electricity Supply Code, 2005, no billing can be done and temporary disconnection shall be deemed to be disconnected permanently. However, respondents are continuously raising electricity bills against the petitioner even though there is no electricity connection and temporary disconnection has been deemed to be converted into permanent disconnection. He further submits that huge electricity demand created by the respondents against the petitioner is fictitious demand, which deserves to be quashed.

Learned counsel for the Respondents No.4, 5 & 6 prays for and is granted a week's time to file counter affidavit in which the Respondents No.4, 5 & 6 shall specifically respond to the submissions of the petitioner afore-noted.

Put up as a **fresh case** before the appropriate Bench on **16.05.2022**.

Order Date :- 7.5.2022

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Hon'ble Shekhar B. Saraf, J.

Hon'ble Praveen Kumar Giri, J.

1. On the consent of both the parties, the matter is fixed on 12.08.2025 in top ten cases.

Order Date :- 5.8.2025

K.Tiwari

(Praveen Kumar Giri, J.) (Shekhar B. Saraf, J.)